

# CLAIM FORM AND RELEASE

## UNITED STATES DISTRICT COURT FOR THE DISTRICT OF SOUTH DAKOTA

*In re: Furniture Mart, USA, Inc., Data Breach Litigation*

Case No. 4:25-cv-04018-RAL

FMUSA Data Breach Settlement  
P.O. Box 25226  
Santa Ana, CA 92799

1- (833)-421-7349

[info@FMUSADataBreachSettlement.com](mailto:info@FMUSADataBreachSettlement.com)  
[www.FMUSADataBreachSettlement.com](http://www.FMUSADataBreachSettlement.com)

### TO BE ELIGIBLE TO RECEIVE BENEFITS FROM THIS SETTLEMENT, YOU MUST BE A SETTLEMENT CLASS MEMBER.

The court has defined the Class this way: “All individuals residing in the United States whose Personal Information was potentially compromised in the Data Breach.”

**Excluded from the Settlement Class** are: (i) FMUSA and any of its parents, subsidiaries, affiliates, officers and directors, and any entity in which FMUSA has a controlling interest; (ii) all individual who make a timely election to be excluded from this proceeding using the correct protocol for opting out; (iii) any and all federal, state, or local governments, including but not limited to their departments, agencies, divisions, bureaus, boards, sections, groups, and/or subdivisions; (iv) the attorneys representing the Parties in the Lawsuit; (v) all judges assigned to hear any aspect of the Lawsuit, as well as their immediate family members; and (vi) any person found by a court of competent jurisdiction to be guilty under criminal law of initiating, causing, aiding or abetting the potential Data Breach, or who pleads *nolo contendere* to any such charge.

You may submit your Claim Form through the Settlement Website, [www.FMUSADataBreachSettlement.com](http://www.FMUSADataBreachSettlement.com), or by completing and signing this Claim Form.

➡ **Claims must be received by November 3, 2026.** ⬅

Paper Claim Forms must be mailed through the United States Postal Service, so that they are received by the Claims Administrator **no later than November 3, 2026**. Please mail to:

Claims Administrator  
FMUSA Data Breach Settlement  
P.O. Box 25226  
Santa Ana, CA 92799

**Do not mail or deliver your Claim Form to the Court, the Settling Parties, or their Counsel.**

## GENERAL INFORMATION

1. Complete information about the proposed Settlement is available at [www.FMUSADataBreachSettlement.com](http://www.FMUSADataBreachSettlement.com).
2. If you submitted a request to be excluded from the Settlement, do not submit a claim.
3. Submit only one Claim Form, online or paper, per person.

## AVAILABLE BENEFITS

FMUSA has agreed to pay for a number of different benefits. All Class Members are eligible to claim **credit monitoring** services, and one or more **cash payment** options. These benefits are explained in more detail below.

**CREDIT MONITORING.** All Class Members are eligible to enroll in three years of CyEx Identity Defense Complete. This comprehensive service comes with \$1 million in identity theft insurance, and includes:

- real time monitoring of your credit file
- dark web scanning
- comprehensive public records monitoring

If anything suspicious happens, you will be able to talk to a fraud resolution agent to help fix any problems.

### CASH PAYMENT OPTIONS

**Documented Losses.** If you incurred actual, documented out-of-pocket losses due to the Data Breach, you can get back up to **\$4,500.00**. The losses must have occurred between November 3, 2024 to present.

This benefit covers out-of-pocket expenses like:

- losses because of identity theft or fraud
- fees for credit reports, credit monitoring, or freezing and unfreezing your credit
- cost to replace your IDs
- postage to contact banks by mail

You need to send proof, like bank statements or receipts, to show how much you spent or lost. You can also send notes or papers you made yourself to explain or support other proof, but those notes or papers alone are not enough to make a valid claim. Your proof or notes should show that your expenses were because of the Data Incident.

You cannot claim a payment for expenses that have already been reimbursed by a third party.

**Lost Time.** Class Members who spent time responding to the Data Breach may claim up to four hours, at \$25.00 per hour, for a maximum of **\$100.00**.



You must have spent the time on tasks related to the Data Breach. Some examples include things like:

- changing your passwords
- investigating suspicious activity in your accounts
- researching the Data Breach

You must briefly describe how you spent this time.

**Alternative Cash Payment.** Instead of any other cash payment option, you may claim a one-time cash **\$75.00** payment. You do not have to provide any proof or explanation to claim this payment.

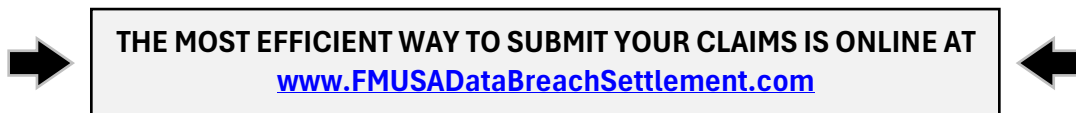
If you have questions about these benefits, you can ask for free help any time by contacting the Claims Administrator at:

Online: [www.FMUSADataBreachSettlement.com](http://www.FMUSADataBreachSettlement.com)

By email: [info@FMUSADataBreachSettlement.com](mailto:info@FMUSADataBreachSettlement.com)

By toll-free call: 1- (833)-421-7349

By mail: Claims Administrator  
FMUSA Data Breach Settlement  
c/o Claims Administrator  
PO Box 25226  
Santa Ana, CA 92799-9958



You may also print out and complete this Claim Form and submit it by U.S. mail.

An electronic image of the completed Claim Form can also be emailed to [info@FMUSADataBreachSettlement.com](mailto:info@FMUSADataBreachSettlement.com).



If you contact information changes after you submit your claim, notify the Claims Administrator.

## I. CLASS MEMBER NAME AND CONTACT INFORMATION

Please complete this entire section. The Claims Administrator will use this information to get in touch with you regarding your claim. If your contact information changes after you submit your claim, notify the Claims Administrator. **Please write legibly.**

## Class Member First Name

MI

[illegible]

## Class Member Last Name

[illegible]

Entity Name (if Class Member is not an individual)

[illegible]

**Address 1 (street name and number)**

[illegible]

**Address 2 (apartment, unit, or box number)**

[illegible]

City

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## Email Address

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## Telephone Number

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**Login ID (if known)**[illegible]

## II. CREDIT MONITORING

- ☐ Check this box if you would like to enroll in three years of Credit Monitoring by a credit bureau.

### III. DOCUMENTED LOSSES

- ☐ Check this box if you would like to claim reimbursement for documented losses due to identity theft or fraud. You can get back up to \$4,500.00.

Please complete the table below, describing the supporting documentation you are submitting.

| <i><b>Description of Documentation Provided</b></i> | <i><b>Amount</b></i> |
|-----------------------------------------------------|----------------------|
| <i>Example: Unauthorized bank transfer</i>          | \$500                |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
|                                                     |                      |
| <b>TOTAL CLAIMED:</b>                               |                      |

If you have more expenses than rows, you may attach additional sheets of paper to account for them. Please print your name and sign the bottom of each additional sheet of paper.

#### IV. LOST TIME

If you spent time fixing problems caused by Data Breach, please select how many hours (up to four) you spent. You must briefly describe how you spent this time.

[illegible]

Describe what you spent this time on:

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## V. ALTERNATIVE CASH PAYMENT

- ☒ Check this box if you want to claim a one-time \$75.00 cash payment.

**DO NOT CLAIM THIS BENEFIT IF YOU ARE CLAIMING PAYMENTS FROM SECTION III, OR IV.**

## VI. PAYMENT SELECTION

Please select **one** of the following payment options, which will be used if you are claiming a cash payment.

- ☒
- PAYPAL**

Email address associated with your PayPal account, if different than you provided in Section I:

[illegible]

- ☐ **VENMO**

Telephone number associated with your Venmo account, if different than you provided in Section I:

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- ZELLE**

Email address associated with your PayPal account, if different than you provided in Section I:

[illegible]

OR

Telephone number associated with your Zelle account, if different than you provided in Section I:

$$\begin{array}{|c|c|c|} \hline & & \\ \hline \end{array} - \begin{array}{|c|c|c|} \hline & & \\ \hline \end{array} - \begin{array}{|c|c|c|c|} \hline & & & \\ \hline \end{array}$$

- ☐
- VIRTUAL PREPAID CARD**

Email address where you want to receive your prepaid card, if different than you provided in Section I:

[illegible]

- ☐ **PHYSICAL CHECK**

Payment will be mailed to the address provided in Section 1.

## VII. ATTESTATION AND SIGNATURE

I swear and affirm on penalty of perjury that the information provided in this Claim Form, including supporting documentation, is true and correct to the best of my knowledge. I understand that my claim is subject to verification and that I may be asked to provide supplemental information by the Claims Administrator before my claim is considered complete and valid.

Class Member Signature

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